

**CV-26-007399 LOUREIRO, DAVID J vs KEENSTAR AMERICA
INVENSTMENT AND DEVELOPMENT CORPORATION – Plaintiff's Motion
for Preliminary Injunction – DENIED without prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: There is no proof of service of the motion on file. Nor is there a proof of service of the summons and complaint on file. "No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc., § 527.) "A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used . . . if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint." (Cal. Rules of Court, rule 3.1150.) "[A]ll moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005.) Accordingly, Plaintiff's motion for preliminary injunction is DENIED without prejudice.

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Accordingly, Plaintiff's motion for preliminary injunction is DENIED without prejudice.